

4-960.3. Affirmation in support of expungement; upon conviction.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF _____

_____ JUDICIAL DISTRICT COURT

In re _____, No.
Petitioner.

**AFFIRMATION IN SUPPORT OF EXPUNGEMENT
(Upon Conviction)**

I, _____, (*Petitioner name*), am requesting the expungement of records under Section 29-3A-5 (2019) NMSA 1978 (Expungement of Records upon Release upon Conviction), and hereby affirm the following:

1. ☐ No charge or criminal proceeding is pending against me in any state or federal court in the United States.

OR

☐ The following charge(s) or criminal proceeding(s) are pending against me in New Mexico _____ state _____ court:

☐ The following charge(s) or criminal proceeding(s) are pending against me in another state _____ court:

☐ The following charge(s) or criminal proceeding(s) are pending against me in federal court:

AND

2. ☐ I have had no criminal convictions against me in the last ten (10) years.

OR

- ☐ The most recent criminal conviction against me was: (Provide date of conviction, jurisdiction, case number, offense of conviction, and the date you finished serving your sentence for the conviction)

I, Petitioner, declare under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.

(Petitioner Signature)

(Print Name)

Street Address

City

State

Zip Code

(Telephone)

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases pending or filed on or after January 28, 2022; provisionally adopted form approved as amended by Supreme Court Order No. S-1-RCR-2024-00099, effective for all cases pending or filed on or after December 31, 2025.]